

Conservation Commission
Meeting Minutes
Monday, November 18, 2024
Remote meeting via Zoom

Members Present: Carolyn Nielsen- Vice-Chair, Henry Hidell, Robert Mosher, Thomas Roby, Nina Villanova and Laurie Freeman

Members Absent: Crystal Kelly

Staff Present: Shannon Palmer – Conservation Officer & Samantha Downton – Administrative Assistant

Vice-Chair Carolyn Nielsen opened the meeting at 7:02PM and read the following statement:

“This meeting is being held remotely as an alternate means of public access pursuant to Chapter 2 of the Acts of 2023 and all other applicable laws temporarily amending certain provisions of the Open Meeting Law. You are hereby advised that this meeting and all communications during this meeting may be recorded by the Town of Hingham in accordance with the Open Meeting Law. If any participant wishes to record this meeting, please notify the chair at the start of the meeting in accordance with M.G.L. c. 30A, § 20(f) so that the chair may inform all other participants of said recording.”

Business Items:

(Commissioners Roby and Mosher were not present for a portion of meeting)

1. Minutes (no minutes)
2. Requests for Certificate of Compliance
 - a) CONT. 300 Linden Ponds Way, DEP No. 034-0708 (from 8/12/24)

Vote: Commissioner Hidell made a motion, seconded by Commissioner Villanova, to continue consideration of the Request for Certificate of Compliance for 300 Linden Ponds Way, DEP No. 034-708 to December 16, 2024. The motion passed by a roll call vote 4-0.

In Favor: Carolyn Nielsen, Bob Hidell, Nina Villanova and Laurie Freeman

Opposed: None

- b) CONT. 300 Linden Ponds Way, DEP No. 034-1264 (from 8/12/24)

Vote: Commissioner Freeman made a motion, seconded by Commissioner Villanova, to continue consideration of the Request for Certificate of Compliance for 300 Linden Ponds Way, DEP No. 034-1264 to December 16, 2024. The motion passed by a roll call vote 4-0.

In Favor: Carolyn Nielsen, Bob Hidell, Nina Villanova and Laurie Freeman

Opposed: None

- c) CONT. 30 Summer Street, DEP No. 034-1472, Town of Hingham (from 9/30/24)

Vote: Commissioner Freeman made a motion, seconded by Commissioner Villanova, to continue consideration of Request for Certificate of Compliance for 30 Summer Street, DEP No. 034-1472 to December 16, 2024. The motion passed by a roll call vote 4-0.

In Favor: Carolyn Nielsen, Bob Hidell, Nina Villanova and Laurie Freeman

Opposed: None

Commission Mosher joined the meeting

- d) CONT. Baker Hill Drive, Christina Estates Subdivision, DEP No. 034-569, Christina Estates HOA, LLC
Representative: Hazem Dani, CHA Consulting (from 10/21)

Vote: Commissioner Hidell made a motion, seconded by Commissioner Villanova, to continue consideration of the Request for Certificate of Compliance for Baker Hill Drive, DEP No. 034-569 to December 16, 2024. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, Nina Villanova and Laurie Freeman
Opposed: None

- e) CONT. 60 Research Road, DEP No.034-1388, Gill-Research Drive, LLC (from 9/30/24)

Vote: Commissioner Mosher made a motion, seconded by Commissioner Villanova, to continue consideration of Request for Certificate of Compliance for 60 Research Rd, DEP No. 034-1388 to June 23, 2025. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, Nina Villanova and Laurie Freeman
Opposed: None

- f) CONT. 14 Seal Cove Road, DEP No. 034-1457, Leonard Monfredo (from 11/4/24)

Vote: Commissioner Villanova made a motion, seconded by Commissioner Mosher, to continue consideration of the Request for Certificate of Compliance for 14 Seal Cove Road, DEP No. 034-1457 to January 13, 2025. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, Nina Villanova and Laurie Freeman
Opposed: None

Commissioner Roby rejoined the meeting.

- g) 22 Saw Mill Pond Road, Dep No. 034-1385, Michael O'Connor

Michael O'Connor, owner, advised the Commission that the project was for a pool and patio install. The cabana was on a patio surface which meant the impervious surface was larger than approved. The mitigation area has had 90% survival rate. The area of natural growth was expanded.

CO Shannon Palmer stated with the increase in impervious surface from the patio, the mitigation area fell short of the required square footage however the plantings that were installed did reach the 75% survival rate. Staff recommended additional mitigation plantings to compensate for the increase in patio. Ms. Palmer asked Mr. O'Connor if the swing set would be removed.

Mr. O'Connor advised it is his plan to remove the swing set.

Ms. Palmer advised the Commission that staff is willing to work with the applicant on additional plantings.

Vote: Commissioner Hidell made a motion, seconded by Commissioner Mosher, to continue consideration of Request for Certificate of Compliance for 22 Saw Mill Road, DEP No. 034-1385 to May 5, 2025. The motion passed by a roll call vote 6-0.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, Tom Roby, Nina Villanova and Laurie Freeman
Opposed: None

3. Vote to issue Order of Conditions, Union Street Wompatuck Park, DEP No. 034-1506

The hearing was closed at the November 4, 2024 meeting. Staff reviewed recommended conditions.

Vote: Commissioner Freeman made a motion, seconded by Commissioner Mosher, to issue an Order of Conditions for Union Street, DEP No. 034-1506, with Findings of Fact A through F and Special Conditions 23-30 as noted in the Staff Memo.

Findings of Fact

- A. The Commission has found the project qualifies as a Limited Project under 310 CMR 10.53(i) “the maintenance, repair and improvement (but not substantial enlargement except when necessary to meet the Massachusetts Stream Crossing Standards) of structures, including dams and reservoirs and appurtenant works to such dams and reservoirs, buildings, piers, towers, headwalls, bridges, and culverts which existed on the effective date of April 1, 1983,” and 310 CMR 10.53(k): “the routine maintenance and repair of road drainage structures including culverts and catch basins, drainage easements, ditches, watercourses and artificial water conveyances to ensure flow capacities which existed on the effective date of April 1, 1983.”
- B. The Commission has found the culvert replacement project has been designed to meet the Massachusetts Stream Crossing Standards and will improve conditions in the Aaron River for movement of aquatic organisms and wildlife species.
- C. The work described in the Notice of Intent is within Areas Subject to Protection under the Wetlands Protection Act, M.G.L. Ch. 131, § 40, and will result in impacts to permanent impacts to Bank, Bordering Vegetated Wetlands, BLSF, Land Under Waterbodies and Riverfront Area. As demonstrated in the Performance Standards Analysis prepared by AECOM submitted with the revised Notice of Intent dated October 29, 2024, the project has been designed to comply with the standards set forth under 310 CMR 10.54, 10.55, 10.56, 10.57, and 10.58(5) and the work will not have a significant or cumulative adverse effects on the resource areas.
- D. The work described is within Areas Subject to Protection under the Town of Hingham Wetlands Protection Bylaw (Article 22) and will result in permanent impacts to Bank, Bordering Vegetated Wetlands, BLSF, Land Under Waterbodies, Riverfront Area and Buffer Zone and the Commission finds the areas are significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention including coastal storm flowage, prevention of water pollution, protection of fisheries, protection of shellfish, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and open space, protection of aesthetics.
- E. As demonstrated in the revised NOI Narrative prepared by AECOM dated October 29, 2024, the project has been designed to comply with the performance standards set forth under the Hingham Wetland Regulations (HWR) Sections 17.3, 19.1, 19.2, 19.3, 21.1, and will not result in an adverse effect upon the wetland values of the resource areas. The project includes restoration of temporarily disturbed areas and replication of BVW to mitigate for the permanent loss of wetlands resulting from the culvert replacement. Additionally the proposed work has been found to comply with the performance standards for work in the Buffer Zone, HWR Section 22.0(d).
- F. With incorporation of the special conditions included in this Order, the Commission has determined the project complies with the Massachusetts Wetlands Protection Act, M.G.L. Ch. 131 §40 and Implementing Regulations, 310 CMR 10.00, and the Hingham Wetlands Protection Bylaw and Wetland Regulations.

Recommended Special Conditions

- 23. Prior to commencement or work/at the pre-construction meeting referenced in Hingham Standard Condition #3, the applicant shall submit a final construction sequence and dewatering plan as applicable to the Conservation office.

24. Best Management Practices (BMPs) and procedures shall be implemented within jurisdictional areas in accordance with the revised Notice of Intent Narrative (Section 5.1) and Sheet 6 of the approved project plans prepared by AECOM dated revised October 29, 2024 including but not limited to: sediment and erosion control; construction access; vehicle and equipment refueling and maintenance; material stockpiling; dewatering; pollution control measures, and restoration of disturbed areas.
25. Construction period monitoring reports shall be submitted to the Commission on a weekly basis during construction documenting compliance with the approved plans and this Order of Conditions. The monitoring reports shall include at a minimum: status of work in wetland areas; status of erosion and sediment controls and BMPs including any repairs; rainfall amounts; and comments.
26. The replication for Bordering Vegetated Wetland (BVW) shall be performed in accordance with Section 6.0 of the NOI Narrative and the Wetland Replication Plan (Sheet 6) of the approved plans prepared by AECOM dated revised October 29, 2024. The project will replicate 73 square feet of BVW. The Commission reserves the right to require additional seeding/plantings to ensure achievement of 75% cover of wetland plant species within two full growing seasons, as specified in 310 CMR 10.55 (4)(b).
27. Replication construction activities must be supervised by a qualified professional, who shall be a professional with experience in wetland replication, wetland hydrology and a working knowledge of botany. Such a person shall be retained by the applicant to supervise and monitor construction of the wetland replication areas until the replication area meets the requirements of this Order of Conditions.
28. Seasonal monitoring reports shall be prepared by the qualified professional for the wetland replication area for two growing seasons following construction. The reports shall be submitted to the Commission by **December 1st** following the growing season. Monitoring reports shall describe, using narratives, plans, and color photographs, the physical characteristics of the wetland replication areas with respect to stability, soil characteristics, survival of vegetation and plant mortality, aerial extent and distribution, species diversity, invasive species, etc. If after two growing seasons, the replication area has not successfully established the required 75% yield, a contingency plan including extended monitoring shall be submitted to the Commission for approval.
29. Areas of temporary resource area disturbance (BVW, Riverfront Area, Bank) shall be restored to their natural condition (pre-construction elevations and conditions) following construction. Disturbed areas within BVW shall be reseeded with NE Wetland Mix and disturbed areas within the Riverfront Area shall be seeded with NE Roadside Upland Seed Mix or equivalent as specified in Section 4.2 of the NOI Narrative. Reporting on the restoration of BVW shall be included in the seasonal monitoring reports referenced in condition #27 as applicable.
30. Upon completion of construction and prior to issuance of a Certificate of Compliance, the Applicant shall submit to the Conservation Commission a final topographical As-Built Plan stamped by a Professional Land Surveyor licensed in the Commonwealth of Massachusetts and a certification letter stamped by a Professional Civil Engineer licensed in the Commonwealth of Massachusetts stating that the site work has been built in “substantial compliance” with the plans approved by the Conservation Commission and listing all deviations, as applicable. The letter and/or plan shall document final compensatory storage volumes and certify that no fill occurred within Bordering Land Subject to Flooding resulting in an incremental loss of flood storage volume. The As-Built Plan shall include:
 - All wetland resource area boundaries with associated buffer zones;
 - Culvert dimensions and invert elevations at inlet and outlet;
 - Bottom substrate within crossing;
 - Wetland replication area.

The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Bob Mosher, Tom Roby, Nina Villanova and Laurie Freeman

Opposed: None

4. Vote to re-issue Order of Conditions, 289 Whiting Street, DEP No. 034-1507, Boston Golf

CO Shannon Palmer noted the original OOC had not been voted correctly and requested a revote of eligible members.

Vote: Commissioner Freeman made a motion seconded by Commissioner Mosher to issue a Restoration Order of Conditions for 289 Whiting Street, DEP No. 034-1507, with Findings of Fact A through E and Special Conditions 23-27 as noted in the Staff Memo. The motion passed by a roll call vote 4-0.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, and Laurie Freeman

Opposed: None

Public Meetings

1. Request for Determination of Applicability, 648 Main Street, Drew Cronin

Drew Cronin, owner, explained to the Commission that they are going through the process of installing a pool with some landscaping. There was a proposed small area of disturbance in the 100' buffer zone. Mr. Cronin showed the Commission the site plan. The plan showed there would be 1150 sq. ft. of grading within the 100' buffer.

Shannon Palmer asked if the 60" tree shown on the plan would be preserved which was confirmed to stay. Staff had no further issues and recommended a Negative Determination.

Vote: Commissioner Freeman made a motion, seconded by Commissioner Villanova, to issue a Negative #3 and #6 Determination of Applicability for 648 Main Street with Findings of Fact A and B and Special Conditions 1 through 3 of the Staff Memo.

Findings of Fact

- A. The work described is within Areas Subject to Protection under the Town of Hingham Wetland Regulations 22.0 (Buffer Zone), and the Commission finds the areas are significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention, prevention of water pollution, protection of fisheries, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and protection of aesthetics.
- B. With incorporation of the special conditions included in this Order, the proposed work has been found to comply with the performance standards set forth under Section 22.0(d) of the Hingham Wetland Regulations and will not alter or adversely affect the adjacent Resource Areas.

Suggested Conditions of Approval

- 1) Erosion and sediment controls shall be installed and inspected by an agent of the Commission prior to commencement of work; straw wattles and/or hay bales shall not be used. Sediment control devices shall remain in place and properly functioning until all exposed soils have been stabilized with final vegetative cover and shall be removed upon authorization by the Conservation Officer.
- 2) Under no conditions shall operation of equipment, storage of materials, or other site disturbance take place on the wetland side of the limit of work line/erosion control line. Additionally, no vehicle or other machinery refueling, lubrication, or maintenance shall take place within 100 feet of any resource area.
- 3) There shall be no discharge of any pool/spa water or backwash within the 50 ft buffer zone.

The motion passed by a roll call vote 6-0.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, Tom Roby, Nina Villanova and Laurie Freeman

Opposed: None

2. Request for Determination of Applicability, 39 Downing Street, McSweeney Associates

Colin McSweeney, McSweeney Associates, explained to the Commission that the failing septic system would be replaced by an upgraded system outside of the 50' buffer zone and just the leaching field is proposed in the 100' buffer.

Staff had no concerns with the proposal and recommended a Negative Determination.

Vote: Commissioner Villanova made a motion, seconded by Commissioner Hidell, to issue a Negative #3 and #6 Determination of Applicability for 39 Downing Street with Findings of Fact A and B and C and Special Conditions 1 and 2 of the Staff Memo.

Findings of Fact

- A. The work described is within Areas Subject to Protection under the Town of Hingham Wetland Regulations, Sections 21.1 (Riverfront Area) and 22.0 (Buffer Zone), and the Commission finds the areas are significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention, prevention of water pollution, protection of fisheries, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and protection of aesthetics.
- B. The work described is within an Area Subject to Protection under the Wetlands Protection Act, 310 CMR 10.58 (Riverfront Area), however is exempted from the requirements of the riverfront regulations pursuant to 310 CMR 10.58(6)(c), the repair or upgrade of an existing on-site sewage disposal system in existence on August 7, 1996, in compliance with the State Environmental Code, Title 5.
- C. With incorporation of the special conditions included in this Order, the proposed work has been found to comply with the performance standards set forth under Section 22.0(d) and 23.1 of the Hingham Wetland Regulations and will not alter or adversely affect the adjacent Resource Areas.

Suggested Conditions of Approval

- 1) Erosion and sediment controls shall be installed and inspected by an agent of the Commission prior to commencement of work; straw wattles and/or hay bales shall not be used as a form of erosion and sediment control.
- 2) Under no conditions shall operation of equipment, storage of materials, or other site disturbance take place on the wetland side of the limit of work line/erosion control line. Additionally, no vehicle or other machinery refueling, lubrication, or maintenance shall take place within 100 feet of any resource area.

The motion passed by a roll call vote 6-0.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, Tom Roby, Nina Villanova and Laurie Freeman

Opposed: None

3. Request for Determination of Applicability, 26 Summer Street, Tracey Environmental Consulting

Jim Murphy, LSP, Tracey Environmental Consulting, Project Representative, explained to the Commission that the proposal is for installation of electrical conduit on the wharf currently operated as Hingham Marinas. He further explained a trench will be excavated to follow the seawall to connect the electrical "closet" at the base of a telephone pole to the shed located near the end of the wharf. The work is within in a gravel covered parking lot used for cars, boats, and dock storage.

Staff had no concerns with the proposal and recommended a Negative Determination.

Vote: Commissioner Hidell made a motion seconded by Commissioner Mosher to issue a Negative #3 and #6 Determination of Applicability for 26 Summer Street with Findings of Fact A and B and Special Conditions 1, 2, and 3 of the Staff Memo.

Findings of Fact

- A. The work described is within Areas Subject to Protection under the Town of Hingham Wetland Regulations 22.0 (Buffer Zone), and the Commission finds the areas are significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention, prevention of water pollution, protection of fisheries, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and protection of aesthetics.
- B. With incorporation of the special conditions included in this Order, the proposed work has been found to comply with the performance standards set forth under Section 22.0(d) of the Hingham Wetland Regulations and will not alter or adversely affect the adjacent Resource Areas.

Suggested Conditions of Approval

- 1) Erosion and sediment controls shall be installed and inspected by an agent of the Commission prior to commencement of work; straw wattles and/or hay bales shall not be used as a form of erosion and sediment control.
- 2) The Conservation office shall be notified 48 hours before the start of work
- 3) Under no conditions shall operation of equipment, storage of materials, or other site disturbance take place on the wetland side of the limit of work line/erosion control line. Additionally, no vehicle or other machinery refueling, lubrication, or maintenance shall take place within 100 feet of any resource area.

The motion passed by a roll call vote 5-0. *Commissioner Freeman was not present for vote.*

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, Tom Roby, and Nina Villanova.

Opposed: None

Public Hearings- Commissioner Nielsen read the public hearing statement.

- 1. CONT. Notice of Intent, 14 Kress Farm Road, DEP No. 034-1508, Nicole and Ricardo Pollitt
Meeting Documents & Exhibits: Staff notes & Site Plan

Rick Grady, Grady Consulting LLC, Project Representative, gave an update to the Commission. The updated plan showed the patio further away from the wetland area and a smaller patio area. The new proposed patio is less of a disturbance in the 50' buffer. The planting plan had also been updated.

CO Shannon Palmer advised the Commission the applicant has made the revisions that were requested to the proposed patio. Also the mitigation plantings are now proposed in the former replication area which has been routinely mowed by previous homeowners. She indicated that the plantings will enhance the wetland replication area and staff has no further issues. Staff recommended a Negative Determination.

Vote: Commissioner Villanova made a motion, seconded by Commissioner Mosher, to close the public hearing for 14 Kress Farm Rd, DEP No. 034-1508, and issue Order of Conditions with Findings of Fact A through D and Special Conditions 23-28.

Findings of Fact

- A. The work described is within an Area Subject to Regulation under the Wetlands Protection Act, M.G.L. Ch. 131, § 40, (Buffer Zone to Bordering Vegetated Wetlands) and with incorporation of the special conditions included in this Order, will not alter or result in adverse impacts to the adjacent Wetland Resource Area.
- B. The work described is within an Area Subject to Protection under the Town of Hingham Wetland Regulations, Section 22.0 (Buffer Zone), and the Commission finds the area is significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention, prevention of water pollution, protection of fisheries, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and protection of aesthetics.
- C. With incorporation of the special conditions included in this Order, the proposed work has been found to comply with the performance standards set forth under Section 22.0(d) of the Hingham Wetland Regulations and will not alter or adversely affect the adjacent Resource Area. The patio will be constructed to be permeable with appropriate joint spacing and permeable subbase and is located further from the resource area than existing conditions.
- D. The Commission has determined the project complies with the Massachusetts Wetlands Protection Act, M.G.L. Ch. 131 §40 and Implementing Regulations, 310 CMR 10.00, and the Hingham Wetlands Protection Bylaw (Article 22) and Wetland Regulations.

Special Conditions

- 23. The wetland Mitigation Area (875 SF) shall be installed as shown on the approved Landscape Plan dated revised November 8, 2024 prepared by a Blade of Grass, LLC. Any changes to the plant selections or quantities shall be submitted to Conservation for review and approval prior to installation. Planting of the mitigation area shall be prioritized and installed during the first growing season (April - November) following issuance of this Order, as practical, to allow for the required two growing season survival requirement (special condition #26).
- 24. Upon installation of the mitigation area, the applicant shall notify the Conservation office in writing and include specific information on the installation date(s), plant species, quantity and size of plants, and seed mix installed, as applicable.
- 25. All mitigation plantings shall be native species; no cultivars, non-native species, or invasive species shall be allowed. Following planting, the Mitigation Area shall be allowed to naturally revegetate with native species and remain as a naturally vegetated buffer to the adjacent resource area. Mitigation areas shall not be disturbed, mowed or maintained as a landscaped area. This condition shall apply in **perpetuity** and shall not expire with the issuance of a Certificate of Compliance.
- 26. Prior to the issuance of a Certificate of Compliance, the mitigation area plantings shall survive at least two full growing seasons, unless otherwise approved by the Commission, with a minimum of 75% survival rate. If a 75% survival rate is not achieved, replacement plantings of the same species, or equivalent to be approved by the Conservation Officer, shall be made by the applicant. A Partial Certificate of Compliance (if requested by the applicant) will only be considered if the mitigation area has been planted and seeded in accordance with the approved plan.
- 27. After completion of work and prior to the issuance of a Certificate of Compliance, the applicant shall permanently mark the Mitigation Area referenced in special condition #24 to ensure no inadvertent encroachment into the area. The markers shall be installed in coordination with the Conservation Officer and shall remain in place in perpetuity.
- 28. The patio shall be constructed to be permeable, with permeable joints and an appropriate permeable subbase as shown on approved project plan prepared by Grady Consulting dated revised November 13, 2024. The Professional Engineer shall submit documentation including photographs to the Commission with the Request for Certificate of Compliance certifying that the patio and

permeable subbase have been installed in accordance with the final approved plan(s) and manufacturer specifications.

The motion passed by a roll call vote 6-0.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, Tom Roby, Nina Villanova and Laurie Freeman

Opposed: None

2. CONT. Notice of Intent, 322 Rockland Street, DEP No. 034-1505, Stephen Linskey (from 10/21/24)

Thomas Tremblay, Merrill Engineers and Land Surveyors, Project Representative, updated the Commission on the changes to the project since the last hearing. The permeable stone patio was proposed to have 2" of pea stone between each of the pavers. The area next to the salt marsh where the shed and gravel were located will be removed and replaced with loam and allowed to naturally revegetate rather than new lawn. The salt marsh will be allowed to restore naturally.

CO Shannon Palmer stated after the last hearing the staff comments were addressed by the engineer and most of the comments were regarding compliance with the regulations. She indicated the primary discussion at the previous hearing was regarding the proposed house being constructed on a crawl space foundation with flood vents as opposed to pilings and if the proposal met the requirements of the Special Flood Hazard Area section of the HWR. Ms. Palmer advised that, in her opinion, the project does meet the requirement for LSCSF as the residence will be smaller, flood resistant, and is not located in a VE Zone or coastal A Zone. Also, the proposal will remove impervious area for an overall improvement to the resource area. The proposed flood vents would make the residence flood resistant and allow flood water to pass through. Ms. Palmer did voice concerns about the patio as it is proposed extremely close to the wetland boundary. Ms. Palmer, at the Commission's request sent a list of similar dwellings that were previously approved in the AE zone. All examples found were on the harbor, some were in the VE zone, and most were on pilings that were being replaced or increasing the size of the residence.

Commissioner Nielsen asked how flooding and water flow would be handled in the garage which is on a slab.

Mr. Tremblay advised that the garage is sloped toward the middle of the driveway and flow to its previous pattern around the house to the salt marsh. The paved area in the rear that will be removed will be a grassed area helping to slow down the water.

Ms. Nielsen stated that the removal of the shed and gravel area in the back, and letting the area naturally revegetate could result in Phragmites. She asked if there was a plan to prevent this.

Mr. Tremblay responded there could be a monitoring plan put in place currently there was nothing proposed but would be happy to comply with the Commissions requirements.

Ms. Nielsen asked the homeowners if they would be willing to monitor for Phragmites to which the agreed.

Ms. Nielsen stated that the proposed patio was closer to the buffer zone and if it was considered to reduce or remove the patio.

Mr. Tremblay advised there had not been discussion to reduce or remove the patio. Although it is 2' away from the salt marsh the paved driveway which is currently 6" away from the salt marsh is being removed.

Commissioner Hidell commented that with the removal of the paved driveway helps mitigate for the patio.

Commissioner Freeman agreed with Mr. Hidell and commented that the pavers are pervious and spread apart and she asked if there was an alternative the patio location.

Mr. Linskey responded the patio is off the kitchen and if it were to be moved where the deck was previously located, it would be behind a pantry without access.

Margaret McWethy, 323 Rockland St., commented she was in favor of the project as this is an improvement from what is existing.

No other members of the public commented on the application.

Ms. Nielsen suggested monitoring for Phragmites be included in the special conditions.

Ms. Freeman asked about the free flow of water and if the flood vents were required and previous examples.

Ms. Palmer stated staff had gone back 10 years and found 7 previous examples that were all raze and rebuilds in the VE or AE zones. The CO noted most had existing pilings that were replaced, some had garages with flood vents, some had partial foundations with flood vents, and some had pilings but all were expansions on the harbor side.

Vote: Commissioner Hidell made a motion, seconded by Commissioner Mosher, to close the public hearing for 322 Rockland Street, DEP No. 034-1502 and issue Order of Conditions with Findings of Fact A- F and Special Conditions 23-25 of the Staff Memo.

Findings of Fact

- A. The work described is within Areas Subject to Protection under the Wetlands Protection Act, M.G.L. Ch. 131, § 40, and will result in impacts to Riverfront Area and Land Subject to Coastal Storm Flowage (LSCSF). As demonstrated in the Performance Standards Analysis submitted with Revised Notice of Intent Narrative dated November 7, 2024, prepared by Merrill Engineers and Land Surveyors, the project has been designed to comply with the performance standards set forth under 310 CMR 10.58(5). The project is also within 100 feet of Salt Marsh however with the special conditions included in this Order, will not result in any adverse effects the resource area and complies with performance standards set forth under 310 CMR 10.32(3) through (6).
- B. The work described is within Areas Subject to Protection under the Town of Hingham Wetland Regulations including Riverfront Area, Land Subject to Coastal Storm Flowage (LSCSF) and Buffer Zone to Salt Marsh and the Commission finds the areas are significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention including coastal storm flowage, prevention of water pollution, protection of fisheries, protection of shellfish, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and open space, protection of aesthetics.
- C. As demonstrated in the revised Notice of Intent Narrative dated November 7, 2024, prepared by Merrill Engineers and Land Surveyors, the project has been designed to comply with the performance standards set forth under Section 18.4(d), 20.1(d), 21.1 of the Hingham Wetland Regulations for work within Riverfront Area, 100 feet of a Salt Marsh and LSCSF, and will not result

in an adverse effect upon the wetland values of this resource areas. The existing building in the AE Zone to be reconstructed will be built using flood-resistant construction further from the resource area. Furthermore, the proposed project will increase the functionality of LSCSF by reducing impervious area (approximately 1,400 SF) within the flood zone.

- D. With incorporation of the special conditions included in this Order, including removal of impervious surfaces and installation of construction phase erosion and sediment controls, the proposed work has been found to comply with the performance standards for work in the Buffer Zone, HWR Section 22.0(d), and will not alter or adversely affect the adjacent Resource Areas.
- E. The Commission has determined the project complies with the Massachusetts Wetlands Protection Act, M.G.L. Ch. 131 §40 and Implementing Regulations, 310 CMR 10.00, and the Hingham Wetlands Protection Bylaw (Article 22) and Wetland Regulations.

Recommended Special Conditions

- 23. Engineered Flood Vents shall be installed as shown on plan prepared by Merrill Engineers and Surveyors dated revised November 14, 2024.
- 24. *If patio removed or relocated-* Prior to commencement of construction, the applicant shall submit a revised plan relocating the patio no closer to the resource area than the existing retaining wall.
- 25. The applicant shall cease mowing of the salt marsh (2,160 SF) as shown on approved project plan dated November 14, 2024 to allow the resource area to restore to natural conditions. The salt marsh shall not be disturbed by mowing, cutting, or any activity without prior approval of the Conservation Commission. This condition does not expire and shall **apply in perpetuity**. If additional restoration efforts (seeding or other) is necessary to restore the salt marsh successfully, the applicant shall present a restoration proposal to the Commission prior to issuance of a Certificate of Compliance.
- 26. Upon completion of construction and prior to issuance of a Certificate of Compliance, the Applicant shall submit to the Conservation Commission a Final As-Built Plan stamped by a Professional Land Surveyor licensed in the Commonwealth of Massachusetts and a certification letter stamped by a Professional Civil Engineer licensed in the Commonwealth of Massachusetts stating that the work has been built in “substantial compliance” with the plans approved by the Conservation Commission (to include required foundation flood vents). All deviations from the approved plans must be noted in the letter. The As-Built Plan shall include at a minimum:
 - a) All wetland resource area boundaries with associated buffer zones;
 - b) Locations and elevations of all hardscapes and structures within jurisdictional areas;
 - c) A line delineating the limit of work- “work” includes

The motion passed by a roll call vote 4-0-2.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell and Laurie Freeman

Abstained: Nina Villanova and Thomas Roby

Opposed: None

- 3. CONT. Notice of Intent, 311 Rockland Street, DEP No. 034-1501, Rankin Residential (from 10/21/24)
Meeting Documents & Exhibits: Staff notes & Site Plan

Walter Sullivan, Esq., representing the applicant, advised the Commission that some changes have been made to the plans based on comments made at the last hearing which Brendan Sullivan, PE, of Merrill Engineers will review. A waiver will no longer be requested as the stormwater had been modified.

Brendan Sullivan, PE, Merrill Engineers, reviewed the plan revisions with the Commission: two, 6 inch perforated pipes were added in the shoulder of the driveway which would be in 2 foot x 2 foot of crushed stone to catch run off; the rain garden (which had been designed for extreme rain events using Cornell numbers) was made bigger for peak flow so less water now flows toward Rockland St. post

construction; the first 40-50' of the driveway is proposed to be pervious; and 600 sq. ft. was added to the plan for mitigation plantings with salt tolerant species.

CO Shannon Palmer stated at this time the representative has addressed the Commissions comments regarding the paved portion of the driveway within LSCSF, expanding the rain garden, and adding the pipe to manage run off. Ms. Palmer spoke to the fact that the encroachment in the 50' buffer can be allowed considering that there is a state highway in between the now pervious portion of the driveway and the resource area. She commented there would still be a paved, steep driveway within the Commissions jurisdiction and that maintenance of the rain garden will be critical to reducing long term impacts from runoff and flooding to the resource area. The CO also noted the application has not been through planning for stormwater review and there have not been any test pits done in the area of rain garden. She suggested the Commission deliberate on if the proposed activity would cause detrimental impacts to the resource area from flooding or pollution triggered by a storm event.

Commissioner Hidell asked how the lower part of the driveway would be treated.

B. Sullivan replied it would be a solid surface such as pervious paver or pavement. There was a proposed trench drain at the end of the driveway so gravel would not be possible.

Commissioner Nielsen commented that the driveway was very steep. Ms. Nielsen expressed concerns with how the driveway would be treated and mentioned sodium chloride would not be a good option due to the proximity to the ACEC. Sand would also not be a good option as it could wash into the trench drain at the bottom of the driveway and potentially ending up in the rain garden.

B. Sullivan commented that an environmental friendly deicing solvent could potentially be found. Mr. Sullivan didn't think deicing chemicals for the driveway would add much of a consequence to what is already used in the area.

Mr. Hidell asked what the percentage of slope was in the lower section of the driveway.

B. Sullivan replied that it was 23-24% of a slope.

Ms. Nielsen expressed concern over the rain garden being critical to the functioning of the drainage of the steep driveway. Ms. Nielsen wanted to know how it would be ensured that the rain garden stays maintained long term.

B. Sullivan suggested putting the maintenance of the rain garden in the conditions. He agreed that the maintenance is important to function properly. He advised that the plan still has to go through planning to be approved.

Ms. Nielsen and Mr. Hidell suggested that peer review through planning for stormwater should be done before the Commission moves ahead with the project.

B. Sullivan advised that the project has not been submitted to planning at this time.

There was discussion among W. Sullivan and B. Sullivan with the Commission of putting conditions on the project so it can move ahead to planning.

Ms. Nielsen expressed she did not feel comfortable moving ahead without seeing the stormwater report.

Mr. Hidell also voiced concern about not having sufficient information to move forward including the test pits in the area of the rain garden. He noted the rain garden is critical to manage the flow of water.

Marybeth White, 218 Hull St, was happy to see that the rain garden had been expanded. She commented that just a couple days prior with the full moon tide right at 311 Rockland St the tide had come up and crossed over the road onto this property. Ms. White asked what would happen to the rain garden when the marsh over flows.

B. Sullivan advised that salt tolerant plants will be planted and able to withstand water from the river.

Ms. White is concerned that when there is a rain event and flooding event that the rain garden won't be enough to take on all of the water.

B. Sullivan advised that the road elevation is at a 7 or 8, and the 100 year rain storm could come up over 10, so Rockland St could be under 2' of water.

Ms. White commented that the flooding happens on at least a yearly basis not every 100 years. This past week it was just a full moon without rain that flooded the road.

B. Sullivan commented that run off from the site will be mitigated through the rain garden and it has been shown that there will be less flow going to Rockland St post construction than pre construction.

Ms. White commented that she is concerned that the very steep driveway will create a waterfall of water to make the flooding worse.

No other members of the public commented on the application.

After discussion, the applicant agreed to the continuance to allow for peer review of the stormwater.

Vote: Commissioner Mosher made a motion, seconded by Commissioner Hidell, to continue the public hearing for 311 Rockland Street, DEP No. 034-1501 to December 16, 2024. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, Nina Villanova and Laurie Freeman

Recused: Thomas Roby

Opposed: None

4. Notice of Intent, 55 Industrial Park Road, DEP No. 034-15XX, Fifty-Five Saxon Hingham, LLC
Proof of Abutter Notification including an Affidavit of Service was submitted to the Conservation office.

Phil Cordeiro, Allen and Major Associates, Project Representative, gave an overview of the project. Proposed is demolition of two commercial buildings on site and construction of a two story office building and improving the site. The driveway and parking area will be reused. The new building would be further away from the resource area. The new building is proposed to be further away from the riverfront. Stormwater management is proposed to be improved. Resource areas include Riverfront Area and Buffer Zone to Bordering Vegetated Wetland associated with a pond. There is a potential vernal pool at the rear of the property which will be studied in the spring. Mr. Cordeiro explained since the application was prepared, the flood maps were updated and there is no longer flood zone on the property. The proposal also includes removal of numerous trees that have been identified by a certified arborist as being dead or diseased.

Sean Papich, Sean Papich Landscape Design, went over the landscape design proposal. The proposal reflected many native and natural plants along the property.

CO Shannon Palmer noted the revised plans presented at the meeting had not been submitted for review. Once plans are reviewed staff will provide comments and recommendations for the next hearing.

No members of the public commented on the application. No DEP file received.

Vote: Commissioner Villanova made a motion, seconded by Commissioner Mosher, to continue the public hearing for 55 Industrial Park Rd, with consent of applicant, to December 16, 2024 at 7PM. The motion passed by a roll call vote 6-0.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, Tom Roby, Nina Villanova and Laurie Freeman
Opposed: None

5. Notice of Intent, 6 Whiton Ave, DEP No. 034-1511, ALR Homes
Proof of Abutter Notification including an Affidavit of Service was submitted to the Conservation office.

Paul Seaberg, Grady Consulting LLC, spoke to the Commission about the proposed project for a raze and rebuild of a single family home. The new home is designed accordance for building code within a flood zone. The existing home is not compliant with existing flood zone requirements. The new home will have flood vents to allow passage of water.

Shannon Palmer stated the office received revised plans earlier in the day but they have not been reviewed.

Commissioner Nielsen asked the public to hold their comments until the Commission can review the revised plans.

Vote: Commissioner Mosher made a motion seconded by Commissioner Freeman to continue the public hearing for 6 Whiton Ave, DEP No. 034-1511, with consent of applicant to December 16, 2024 at 7PM. The motion passed by a roll call vote 6-0.

In Favor: Carolyn Nielsen, Bob Mosher, Bob Hidell, Tom Roby, Nina Villanova and Laurie Freeman
Opposed: None

Other Business:

1. Conservation Officer Updates
Shannon Palmer stated the Tranquility Grove project was withdrawn from CPC consideration. The Bennett property application is moving forward.

Adjourn

Motion: Commissioner Hidell moved to adjourn the meeting. Commissioner Mosher seconded the motion. The motion passed by roll call vote, 6-0.

Meeting adjourned at 9:11PM
Approved on 12/16/2024